

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE AN AMENDED AND RESTATED DEVELOPMENT AGREEMENT BETWEEN THE CITY AND GRANITE PEAK DEVELOPMENT, LLC, CLEAR CREEK LAND COMPANY, LLC, AND SWAN RANCH, LLC, CONCERNING SWAN RANCH RAIL PARK.”

WHEREAS, City Contract #5648, recorded May 27, 2011 at Book 2221, Page 1156 of the books and records of the Laramie County Clerk is a development agreement (“Original Development Agreement”) between the City of Cheyenne and Granite Peak Development, LLC, Clear Creek Land Company, LLC, and Swan Ranch, LLC, concerning Swan Ranch Rail Park (the latter three entities collectively referred to as “Developer/Owner”); and

WHEREAS, certain provisions of said Original Development Agreement require clarification; and

WHEREAS, certain new issues relating to development in Swan Ranch Rail Park have arisen since the time of said Original Development Agreement; and

WHEREAS, the City and Developer/Owner wish to amend and restate said Original Development Agreement.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, Wyoming, that the Mayor and City Clerk are hereby authorized and directed to execute an Amended and Restated Development Agreement between the City and Granite Peak Development, LLC, Clear Creek Land Company, LLC, and Swan Ranch, LLC, concerning Swan Ranch Rail Park.

PRESENTED, READ, AND ADOPTED ON THIS _____ DAY OF _____, 2013.

Richard L. Kaysen, Mayor

SEAL:

ATTEST:

Carol Intlekofer, City Clerk